second or successive motion under the correct standard. The judgment below is vacated, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE JACKSON, concurring.

I agree with the Court that, under our precedents, Congress was required to say more if it wanted 28 U. S. C. § 2244(b)(3)(E) to strip our jurisdiction over federal prisoners' requests for review of panel-certification decisions. See *ante*, at 27. I likewise agree with the Court's conclusion that § 2244(b)(1)'s bar on do-over claims in second or successive applications applies only to state prisoners. See *ante*, at 36–37. I write separately to offer my view of what Congress likely sought to accomplish with § 2244(b)(3)(E): insulating a three-judge panel's properly made (even if erroneous) gatekeeping determination from further review. The provision's language, our decision in *Castro* v. *United States*, 540 U. S. 375, 381 (2003), and the broader statute's detailed gatekeeping scheme all support this interpretation. Because the three-judge panel here did not deny Bowe's petition pursuant to the statutorily prescribed procedures, I think it did not make the sort of determination Congress intended to insulate.

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I

Section 2244(b)(3)(E) provides that "[t]he grant or denial of an authorization by a court of appeals to file a second or successive application shall not be appealable and shall not be the subject of a petition for rehearing or for a writ of certiorari." This provision thus prevents our Court from reviewing a certiorari petition whose "subject" is the "grant" or "denial" of a request for "authorization . . . to file a second or successive application." That proscription does not cover Bowe's petition.

In its decision below, the Court of Appeals did not grant or deny Bowe authorization to proceed on his successive claim. Rather, it "dismissed" his proposed claim "for lack of jurisdiction." *In re Bowe*, Civ. No. 24–11704 (CA11, June 27, 2024), App. 79. True, "the label attached to an order" does not erase its "practical effect." *Abbott* v. *Perez*, 585 U. S. 579, 594 (2018) (internal quotation marks omitted); see also *post*, at 62–63, n. 4 (GORSUCH, J., dissenting). But, in this case, the distinction between a denial and a dismissal is practical, not semantic.

As I read § 2244(b)(3)(E), a "grant or denial" occurs when a three-judge panel goes through the screening procedures Congress has prescribed and applies the appropriate criteria for second or successive claims.[1] Here, the three-judge panel never actually applied the relevant criteria to Bowe's motion—that is, the criteria for federal prisoners under §§ 2255(h)(1) and (h)(2). Instead, the panel reflexively dismissed Bowe's authorization request, holding that § 2244(b)(1)'s bar on do-over claims deprived it of jurisdiction, even though § 2244(b)(1) applies only to state prisoners, for the reasons the Court explains. *Ante*, at 39.

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As a result, a three-judge panel never undertook the required process for evaluating—*i. e.*, for granting or denying—Bowe's authorization request. Put differently, because the panel *dismissed* Bowe's petition, there was no "grant or denial" of his "authorization" request that could be challenged in a petition for certiorari, as § 2244(b)(3)(E) requires.

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[1] Today's dispute encompasses a disagreement about which set of statutory criteria applies to *federal* prisoners: § 2244(b)(1) or § 2255(h). According to JUSTICE GORSUCH, "[e]veryone agrees" that § 2244(b)(3)(E) "precludes us from exercising certiorari jurisdiction to review an appellate panel's decision granting or denying certification to *state* prisoners." *Post*, at 49 (dissenting opinion) (emphasis added). I agree with that assertion, but, as I will explain, only insofar as it refers to appellate-panel decisions that actually apply the statutory criteria and specified procedures for granting or denying state prisoners' authorization requests.

This reading of § 2244(b)(3)(E) finds support in *Castro*. That case, like this one, came to us in a distinct posture. Castro, a federal prisoner, filed a motion in the District Court to vacate his sentence under § 2255. See 540 U. S., at 378. Because Castro did not understand his motion to be second or successive, he did not first seek authorization from a three-judge panel in the Court of Appeals. See *id.*, at 378–379; see also 28 U. S. C. § 2244(b)(3)(A) ("Before a second or successive application . . . is filed in the district court, the applicant shall move in the appropriate court of appeals for an order authorizing the district court to consider the application"). Taking a different view than Castro, the District Court "dismissed the motion for failure to comply with" the statutory restrictions on second or successive claims. 540 U. S., at 379. On appeal, the Eleventh Circuit agreed with the District Court's analysis and affirmed without evaluating Castro's motion on the merits. Castro subsequently filed a petition for a writ of certiorari, seeking to challenge the Eleventh Circuit's second or successive determination. But the Government contended that we lacked jurisdiction under § 2244(b)(3)(E). See *id.*, at 379–380.

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We ultimately held that § 2244(b)(3)(E) did not bar our review of Castro's petition. In so holding, we emphasized that Castro had not "asked the Court of Appeals to grant, and it nowhere denied, any 'authorization . . . to file a second or successive application.'" *Id.*, at 380 (quoting § 2244(b)(3)(E)). Instead, the case came to the Eleventh Circuit on appeal, after the District Court had already made its own determination about the viability of Castro's motion. In that posture, we explained, the Eleventh Circuit had not made a "statutorily relevant 'denial' of a request" for authorization—even though the court's conclusion "had the *effect* of denying 'authorization'" to Castro. *Id.*, at 380. Against that procedural background, the "'subject'" of Castro's certiorari petition was "not the Court of Appeals' 'de-

nial of an authorization,' " so we retained our jurisdiction despite § 2244(b)(3)(E). *Ibid.*

So too here. To be sure, unlike *Castro*, Bowe's case has moved through the initial procedure for second or successive motions—that is, Bowe comes to us after first requesting authorization from a three-judge panel in the Court of Appeals. But, just like *Castro*, the three-judge panel never made a "statutorily relevant" denial of Bowe's authorization request. To do so, the panel would have had to go through the applicable statutory criteria and determine whether Bowe's successive motion satisfied the conditions of §§ 2255(h)(1) and (h)(2). Because the panel never made such a determination, it neither granted nor denied Bowe's authorization request, as required to bar our review under § 2244(b)(3)(E).[2]

II

One might reasonably question why Congress would have crafted § 2244(b)(3)(E) to achieve such a technical distinction: barring further review of denials on the merits while permit-

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[2] Because *Castro*'s analysis calls for a "statutorily relevant" denial, 540 U. S., at 380, it lays bare JUSTICE GORSUCH's mistaken contention that "[a] denial is a denial" for § 2244(b)(3)(E) purposes, *post*, at 63, n. 4. Reading the statute as I do also resolves the purported tension in the Court's opinion that JUSTICE GORSUCH elsewhere identifies: Why would the Court "take the trouble to show" that Castro, a federal prisoner, "wasn't pursuing a second or successive attack subject to subparagraph (E)" if that provision had "no bearing whatsoever on federal prisoners in the first place?" *Post*, at 53. The answer, of course, is that the Court had no need to resolve subparagraph (E)'s application to all federal prisoners when the provision so clearly did not apply to Castro. In other words, the Court left open the question whether subparagraph (E) prevented our review of a certiorari petition whose "'subject'" actually is a "statutorily relevant 'denial' of a request" for authorization to file a successive claim under 28 U. S. C. § 2255. 540 U. S., at 380. I agree with today's conclusion that subparagraph (E) does not prevent our review under those circumstances. This separate writing observes only that *Castro*'s logic likewise authorizes our review of Bowe's petition.

ting further review of the panel's use of the wrong criteria or procedures. As JUSTICE GORSUCH points out, the effect is the same; either way, the prisoner may not file his second or successive motion. *Post*, at 62–63, n. 4. But in my view, the distinction is not a technical (or meaningless) one. Instead, it fits neatly within, and advances, the gatekeeping scheme Congress established.

For evidence, look no further than § 2244(b)(3)'s other subparagraphs, which set forth a multipart gatekeeping process for second or successive claims. First, a prisoner "move[s] in the appropriate court of appeals for an order authorizing" a second or successive claim. § 2244(b)(3)(A). Second, "a three-judge panel" considers the request for authorization. § 2244(b)(3)(B). Third, the panel "determines" whether the prisoner has made "a prima facie showing" of satisfying the relevant statutory "requirements." § 2244(b)(3)(C). Fourth, the panel issues its determination in no more than "30 days." § 2244(b)(3)(D).

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With § 2244(b)(3), Congress plainly erected a specific screening process for second or successive petitions. And with subparagraph (E), in particular, Congress afforded that process finality—but only if the prescribed procedures have been properly followed.

By contrast, consider a panel that completely ignores the statute's specified gatekeeping requirements when making the authorization determination. Maybe the panel consists of five judges instead of three. Or maybe the panel automatically and arbitrarily denies all requests for authorization, refusing to evaluate whether the prisoner has satisfied the relevant statutory criteria. It would be exceedingly strange for us to conclude that Congress meant to insulate a rogue panel's actions from further review. Indeed, why would Congress devise such a detailed gatekeeping scheme while foreclosing review of its evasion?

At bottom, then, § 2244(b)(3)(E) rationally operates as a finality provision, designed to give a three-judge panel the

last say when the panel properly performs its gatekeeping function. But when the panel goes through the wrong procedures (as it did in *Castro*) or applies the wrong criteria (as it did here), it has not made the requisite "grant or denial of an authorization" that § 2244(b)(3)(E) insulates from further review.

For that reason, in my view, even if Congress had spoken more clearly about § 2244(b)(3)(E)'s application to federal prisoners, the panel's mistaken dismissal—instead of denial—of Bowe's petition makes § 2244(b)(3)(E) patently inapplicable.

JUSTICE GORSUCH, with whom JUSTICE THOMAS and JUSTICE ALITO join, and with whom JUSTICE BARRETT joins as to Part I, dissenting.

Under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), courts of appeals serve an important gatekeeping function. When a state prisoner seeks to challenge his conviction or sentence in federal court for the first time, he normally proceeds directly to district court under 28 U. S. C. § 2254. But before a state prisoner may bring a second or successive attack in district court, AEDPA requires him to obtain a certificate from a panel of the relevant federal court of appeals. And under § 2244, an appellate panel may certify a case to proceed only subject to certain demanding rules.

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Two are relevant here. First, an appellate panel may not authorize do-over claims—claims the prisoner already "presented in a prior" federal challenge. § 2244(b)(1). Second, neither a state prisoner nor state authorities may file a petition for rehearing or seek "a writ of certiorari" to contest an appellate panel's decision granting or denying certification. § 2244(b)(3)(E).

AEDPA contains parallel directions for federal prisoners. When a federal prisoner seeks to challenge his conviction or sentence collaterally for the first time, he usually proceeds